

Tentative Rulings for September 2, 2026

Department MV1

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department MV1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 684 8816**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVMV2407504	AMERICAN EXPRESS NATIONAL BANK VS KELLEY	MOTION TO ENFORCE SETTLEMENT BY AMERICAN EXPRESS NATIONAL BANK

Tentative Ruling: Granted.

The dismissal is set aside and judgment shall enter in the amount of \$9,298.39.

2.

CASE #	CASE NAME	HEARING NAME
CVMV2502259	CAPITAL ONE N.A. VS AVILA	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CAPITAL ONE N.A.

Tentative Ruling: Granted.

The dismissal is set aside and judgment shall enter in the amount of \$3,091.61.

3.

CASE #	CASE NAME	HEARING NAME
CVMV2508076	CAPITAL ONE N.A. VS PORTIS	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CAPITAL ONE N.A.

Tentative Ruling: Granted.

The dismissal is set aside and judgment shall enter in the amount of \$5,825.87.